

Term Sheet - Commercial Real Estate Loan (Borrower Markup)

Acme Bank and Harborview Logistics Holdings LLC | Term sheet dated July 21, 2026 | LOS-2026-Harborview

This term sheet summarises the terms on which Acme Bank, 200 Commerce Street, Suite 900, Boston, Massachusetts 02109 (the **Bank**), would consider extending a loan to Harborview Logistics Holdings LLC (the **Borrower**). It is not a commitment to lend. A commitment, if issued, will be subject to Credit Committee approval and definitive loan documents on the Bank's standard form.

Section numbering follows the Bank's form of loan agreement so that each term can be read beside the corresponding section of the Borrower's executed 2023 and 2025 agreements. Borrower's proposed changes are shown in red and remain subject to Credit Risk review.

1. PARTIES

Lender: Acme Bank. Borrower: Harborview Logistics Holdings LLC, a Massachusetts limited liability company and wholly owned subsidiary of Harborview Logistics. Guarantors: as set out in Section 6.

2. LOAN AMOUNT AND PURPOSE

2.1 A term loan of up to \$4,800,000 (the **Loan**) to finance the acquisition of the distribution facility at 1200 Harbor Way, Everett, Massachusetts 02149 (the **Real Property**) for owner occupancy.

2.2 Borrower shall contribute cash equity of not less than \$1,200,000 at closing.

3. INTEREST RATE

3.1 Fixed at 6.85% per annum for the term of the Loan, subject to the Bank's pricing floor of the greater of SOFR plus 2.75% and 6.50%.

HARBORVIEW MARKUP: Borrower requests relationship pricing of 6.50% in recognition of its existing accounts with the Bank.

4. TERM, AMORTIZATION AND MATURITY

4.1 Term: 120 months from closing. 4.2 Amortization: 25 years, with monthly payments of principal and interest. 4.3 All outstanding principal and accrued interest is due at maturity.

5. COLLATERAL AND SECURITY

5.1 A first-priority mortgage on the Real Property and a first-priority security interest in the other Collateral described in Schedule A. 5.2 The appraised value of the Collateral is determined by an appraisal ordered by the Bank from an approved appraiser. 5.3 Borrower shall maintain property, general liability, and flood insurance naming the Bank as mortgagee and loss payee.

6. GUARANTY

6.1 Unlimited personal guaranty from each owner of twenty percent or more of the Borrower.

HARBORVIEW MARKUP: Borrower proposes a limited guaranty from Dana Whitfield and Renata Voss capped at \$1,000,000 each, and no guaranty from Harborview Employee Holdings LP.

7. CONDITIONS PRECEDENT

Satisfactory appraisal, title insurance, survey, Phase I environmental site assessment, evidence of insurance, formation documents, and executed loan documents.

8. FINANCIAL COVENANTS

8.1 Loan-to-Value. The outstanding principal balance of the Loan shall not at any time exceed 75% of the appraised value of the Collateral, as determined under Schedule A and by an appraisal ordered by the Bank.

8.2 Debt Service Coverage. Borrower shall maintain a Debt Service Coverage Ratio of not less than 1.25x, calculated and tested in the manner set out in Section 9.3.

9. REPORTING AND INSPECTION

9.1 Notices. Borrower shall give the Bank prompt written notice of any Event of Default, any material litigation, and any change in ownership of more than ten percent.

9.2 Inspection. The Bank shall be entitled to inspect the Collateral and Borrower's books and records on reasonable notice during business hours.

9.3 Financial Reporting. Borrower shall deliver to the Bank (a) annual financial statements reviewed by an independent accountant within 120 days after each fiscal year end and (b) quarterly financial statements within 45 days after each fiscal quarter end, together with a compliance certificate calculating the Debt Service Coverage Ratio for the trailing twelve months. The Debt Service Coverage Ratio is tested quarterly on the basis of each compliance certificate.

HARBORVIEW MARKUP: Borrower proposes that the financial statements and compliance certificate in this Section be delivered annually, within 180 days after each fiscal year end, consistent with the company's audit cycle, and that the Debt Service Coverage Ratio be calculated for the purposes of Section 8.2 on the basis of the annual statements at not less than 1.10x. Quarterly statements and quarterly testing are deleted.

10. EVENTS OF DEFAULT

Non-payment, breach of a covenant in Section 8 or 9 not cured within thirty days, misrepresentation, cross-default to other indebtedness of the Borrower or a Guarantor to the Bank, and insolvency.

11. FEES AND EXPENSES

Origination fee of 0.50% of the Loan amount. Borrower pays the Bank's appraisal, environmental, title, and legal costs whether or not the Loan closes.

12. GOVERNING LAW

The Commonwealth of Massachusetts.

SCHEDULE A - COLLATERAL

The Collateral consists of the Real Property, all improvements and fixtures forming part of the Real Property, the leases and rents of the Real Property, and the proceeds of each. The appraised value of the Collateral for the purposes of Section 8.1 is the as-is market value of the Real Property stated in the Bank-ordered appraisal. Furniture, trade fixtures, equipment, vehicles, and inventory are excluded.

HARBORVIEW MARKUP: The Collateral also includes all furniture, fixtures and equipment located at the Real Property, valued at net book value per the Borrower's most recent balance sheet (\$850,000), and that value is included in the appraised value of the Collateral for the purposes of Section 8.1, consistent with the collateral pool under the Borrower's 2025 equipment loan.

SCHEDULE 1 - NEGOTIATED COVENANTS

To be agreed. The Borrower's executed 2023 and 2025 agreements each carry a Schedule 1.

BORROWER MARGIN NOTES - FOR CREDIT RISK REVIEW

Section	Borrower position
3.1	Relationship pricing at 6.50%.

Section	Borrower position
6.1	Limited guaranty, capped at \$1,000,000 per individual; no guaranty from the employee holding entity.
9.3	Annual reporting and testing, aligned to the audit cycle. Administrative alignment only.
Schedule A	Include FF&E; in the collateral description, consistent with the 2025 equipment loan.

Status: with Credit Risk. No Bank response issued as at the date of this markup.

This synthetic term sheet is designed for loan origination demonstrations. Names, addresses, amounts, and terms are fictional and are not financial or legal advice.